

Duties and Powers of the Department and the State Board of Real Estate

Both the Department of Licensing and Regulatory Affairs (LARA) and the Board of Real Estate Brokers and Salespersons have duties related to the practice of real estate in Michigan.

General duties and powers of the department include:

- Issuing licenses to those who meet the requirements
- Renewing licenses of those who fulfill all the requirements
- Promulgating rules in order to implement Michigan occupational code
- Reviewing and approving licensing examination content
- Approving education providers to offer licensing courses
- Controlling files of all state boards to ensure public access laws are met
- Providing state boards with office services and staff
- Contracting with other people or entities to perform duties on the department's behalf
- Conducting orientations for new board members
- Publishing annual reports of department activities
- Investigating complaints

The board's duties include:

- Interpreting licensing requirements and assisting the department in interpreting these requirements
- Assisting with investigations, including attending informal conferences
- Assisting the department in implementing Michigan occupational code
- Promulgating rules to assist with performing its duties and setting minimum standards of real estate practice
- Assessing penalties upon hearing completion
- Recommending education provider and program approvals to the department
- Developing licensing exams